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[TENTATIVE] ORDER GRANTING IN PART AND DENYING IN PART MOTION TO QUASH 7-ELEVEN, INC'S SUBPOENA DUCES TECUM and GRANTING MONETARY SANCTIONS

I. INTRODUCTION

On April 21, 2025, Plaintiff Balbir Singh ("Plaintiff") filed this action against Defendants 7-Eleven, Inc. ("7-Eleven"), Jae Jin Choi erroneously sued as Jaejin Choi ("Choi"), and DOES 1 to 100, arising from a June 28, 2024 incident in which Choi allegedly drove his vehicle into a 7-Eleven store in Arcadia, California, injuring Plaintiff. 7-Eleven filed a Cross-Complaint against Choi on July 17, 2025, seeking indemnity and contribution.

On July 13, 2026, Choi filed the instant motion to quash 7-Eleven's subpoena duces tecum to Progressive Casualty Insurance Company. On August 6, 2026, 7-Eleven filed an opposition. On August 12, 2026, Choi filed a reply.

II. LEGAL STANDARD

"Any consumer whose personal records are sought by a subpoena duces tecum and who is a party to the civil action in which this subpoena duces tecum is served may, prior to the date for production, bring a motion under Section 1987.1 to quash or modify the subpoena duces tecum." (Code Civ. Proc., § 1985.3, subd. (g).) "Notice of the bringing of that motion shall be given to the witness and deposition officer at least five days prior to production. The failure to provide notice to the deposition officer shall not invalidate the motion to quash or modify the subpoena duces tecum but may be raised by the deposition officer as an affirmative defense in any action for liability for improper release of records." (Code Civ. Proc., § 1985.3, subd. (g).)

"If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders." (Code Civ. Proc., § 1987.1, subd. (a).) A party to an action may bring a motion pursuant to CCP § 1987.1(a). (Code Civ. Proc., § 1987.1, subd. (b)(1).)

"In California, discovery may be obtained from a nonparty through an oral deposition, a written deposition, or a deposition for the production of business records and things." (Board of Registered Nursing v. Superior Court of Orange County (2021) 59 Cal.App.5th 1011, 1030.) "To pursue the deposition of a nonparty, a party must generally serve a deposition subpoena." (Ibid.)

"For discovery purposes, information is relevant if it might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement." (Gonzalez v. Superior Court (1995) 33 Cal.App.4th 1539, 1546 [italics in original].) Generally, all unprivileged information that is relevant to the subject matter of the action is discoverable if it would itself be admissible evidence at trial or if it appears reasonably calculated to lead to the discovery of admissible evidence. (Code Civ. Proc. § 2017.010; Schnabel v. Superior Court (1993) 5 Cal.4th 704, 711.)

There is an interest "in precluding the dissemination or misuse of sensitive and confidential information." (Grafilo v. Wolfsohn (2019) 33 Cal.App.5th 1024, 1033-34 [citation omitted, internal quotations omitted].) "The right to privacy, however, is not absolute." (Id. at p. 1034 [citation omitted].) "Potential invasions of privacy are ordinarily evaluated by balancing the privacy interest at stake and the seriousness of the threatened invasion with the strength of legitimate and important countervailing interests." (Ibid. [citation omitted].) "On occasion [a party's] privacy interests may give way to the opponent's right to a fair trial. Thus, courts must balance the right of civil litigants to discovery relevant facts against the privacy interests of persons subject to discovery." (John B. v. Superior Court (2006) 38 Cal.4th 1177, 1199 [citation omitted].) A party seeking to limit discovery must show good cause for such limitation. (Valley Bank of Nevada v. Superior Court (1975) 15 Cal.3d 652, 657.) "In law and motion practice, factual evidence is supplied to the court by way of declarations." (Calcor Space Facility, Inc. v. Superior Court (1997) 53 Cal.App.4th 216, 224.)

"[I]n making an order pursuant to a motion made . . . under Section 1987.1, the court may in its discretion award the amount of the reasonable expenses incurred in making or opposing the motion, including reasonable attorney's fees, if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more requirements of the subpoena was oppressive." (Code Civ. Proc., § 1987.2, subd. (a).)

III. ANALYSIS

Defendant Choi moves to quash the subpoena duces tecum served by Cross-Complainant 7-Eleven on Choi's liability insurer, Progressive Casualty Insurance Company ("Progressive"). The subpoena seeks "any and all non-privileged records" pertaining to Choi's Progressive policy, including insurance policies, declaration pages, coverage position letters, insured property, vehicles and persons, prior accidents, traffic citations and moving violations, statements of parties and witnesses, receipts, payments, photographs, medical records, and medical payment files and statements. (Motion, pp. 2, 4.)

Choi argues the subpoena is overbroad, lacks any meaningful time limitation, and simply not relevant to the issues remaining in this case. He emphasizes that he has already admitted he owned and drove the vehicle, negligently caused the collision, and was intoxicated, and contends those admissions eliminate any need for broad discovery into his prior claims and driving history. (Id. at pp. 5-7.)

Choi also argues the subpoena invades his privacy and confidentiality rights, as well as those of third parties, by seeking insurance, medical, and other personal information. He further contends the subpoena may sweep in attorney-client communications and attorney work product. (Id. at pp. 7-9.)

Choi maintains that any relevant information could be obtained through less intrusive and alternative methods, including DMV records, an ISO Claims Index search, or narrower written discovery. (Motion, pp. 2-3.)

7-Eleven opposes the motion, arguing the subpoena seeks information relevant to its indemnity and contribution claims, namely the scope and nature of Choi's liability, including whether his conduct was part of a pattern of dangerous driving. It contends Choi's admissions do not foreclose discovery into his prior driving history, accidents, and insurance coverage. (Opposition, pp. 2, 4.)

7-Eleven further argues any privacy concerns can be addressed by the existing protective order and that the subpoena expressly excludes privileged materials. Also, that the subpoena does not invade the attorney-client privilege because it expressly excludes privileged documents, and any privileged materials in Progressive's file need not be produced. (Opposition, pp. 5-6.)

The Court finds the subpoena overbroad as drafted but declines to quash it in its entirety. The subpoena seeks “any and all non-privileged records” relating to Choi’s insurance policy, including coverage letters, insured persons and property, prior accidents and driving violations, statements, photographs, payments, and medical records, without any meaningful time or subject-matter limitation. The request therefore extends beyond the insurance information discoverable under Code of Civil Procedure section 2017.210 and encompasses private information with little or no connection to the issues in this action.

The Court also considers Choi’s admissions that he owned and operated the vehicle, negligently caused the subject collision, and was intoxicated. (Motion, pp. 3, 6-7.) Those admissions narrow the issues concerning Choi’s fault and weigh against broad discovery into his claims and driving history. They do not, however, eliminate 7-Eleven’s right to obtain otherwise discoverable insurance information or limited information concerning the prior collision identified in its opposition.

Choi also has a recognized privacy interest in his medical, financial, and insurance information, as well as a reasonable expectation of privacy in unrelated information maintained by his insurer. Given the breadth of the subpoena, Choi’s privacy interests outweigh 7-Eleven’s need for unrestricted access to those records. Those concerns can be addressed by narrowing the subpoena and applying the protective order already in place.

The Court therefore modifies the subpoena pursuant to Code of Civil Procedure section 1987.1. Progressive shall produce only: (1) the policy and declarations page applicable to the June 28, 2024, incident, including the applicable liability limits; and (2) non-privileged records sufficient to identify any motor vehicle collision involving Choi during the five years preceding the subject incident, including the date and general nature of the collision. The five-year limitation permits reasonable discovery into Choi’s recent collision history while avoiding an unrestricted inquiry into unrelated or remote claims.

Progressive need not produce coverage position letters; records concerning unrelated insured persons, vehicles, or property; medical records or medical payment files; receipts or payment records; or statements, photographs, or other claims-file materials concerning unrelated incidents. Privileged attorney-client communications and attorney work product shall not be produced. Any production shall be subject to the protective order already entered in this action.

Sanctions

Code of Civil Procedure section 1987.2, subdivision (a), permits the Court, in its discretion, to award reasonable expenses incurred in making or opposing a motion under section 1987.1, including attorney’s fees, where the motion was made or opposed in bad faith or without substantial justification, or where one or more requirements of the subpoena were oppressive. Here, Choi seeks \$4,560 in sanctions against 7-Eleven and its counsel. (Motion, p. 10.) The Court finds some sanctions warranted. Although 7-Eleven had a legitimate basis to seek discovery from Progressive, the subpoena was substantially overbroad, and 7-Eleven declined to reasonably narrow it during the meet-and-confer process. The Court therefore finds 7-Eleven lacked substantial justification in maintaining the subpoena as drafted.

The Court find two hours of attorney time at counsel’s hourly rate of \$450 reasonable, plus the \$60 filing fee. (Patel Decl., ¶ 13.) The Court therefore awards Choi monetary sanctions of \$960 against 7-Eleven and its counsel.

IV. CONCLUSION AND ORDER

The Court GRANTS IN PART and DENIES IN PART Choi’s motion to quash. The subpoena to Progressive Casualty Insurance Company is modified as set forth above.

The Court GRANTS Choi’s request for monetary sanctions in the amount of \$960 against 7-Eleven and its counsel, jointly and severally, payable within 30 days.

Choi is to give notice

Dated: August 19, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT